

IN THE HONORABLE SUPREME COURT OF THE REPUBLIC OF LIBERIA
SITTING IN ITS OCTOBER TERM, A. D. 2021

BEFORE HIS HONOR: FRANCIS S. KORKPOR, SR.CHIEF JUSTICE
BEFORE HER HONOR: JAMESETTA H. WOLOKOLIE.....ASSOCIATE JUSTICE
BEFORE HER HONOR: SIE-A-NYENE G. YUOHASSOCIATE JUSTICE
BEFORE HIS HONOR: JOSEPH N. NAGBE.....ASSOCIATE JUSTICE
BEFORE HIS HONOR: YUSSIF D. KABA..... ASSOCIATE JUSTICE

His Honor Roland F. Dahn, Assigned Circuit
Judge, Sixth Judicial Circuit, Civil Law Court
"B" and Rajinder Pal Singh Dhaliwal, by and
Thru his Attorney-in-Fact, J.Q. Harris of
Monrovia, Liberia.....Appellants

APPEAL

Versus

Mohinder Pal Dhaliwal of Monrovia,
Liberia.....Appellee

GROWING OUT OF THE CASE:

Mohinder Pal Dhaliwal of Monrovia,
Liberia.....Petitioner

PETITION FOR WRIT OF
PROHIBITION

Versus

His Honor Roland F. Dahn, Assigned Circuit
Judge, Sixth Judicial Circuit, Civil Law Court
"B" and Rajinder Pal Singh Dhaliwal, by and
thru his Attorney-in-Fact, J.Q. Harris of
Monrovia, Liberia.....Respondents

GROWING OUT OF THE CASE:

Rajinder Pal Singh Dhaliwal, by and thru his
Attorney-in-Fact, J.Q. Harris of Monrovia,
Liberia.....Movant

MOTION TO INTERVENE

Versus

Mohinder Pal Dhaliwal of the City of Monrovia,
Liberia.....Respondent

Heard: November 11, 2021

Decided: February 17, 2022

MADAM JUSTICE WOLOKOLIE DELIVERED THE OPINION OF THE COURT

This appeal emanates from a Chambers ruling made by our Colleague, His Honor Joseph N. Nagbe, in which he granted the peremptory writ of prohibition prayed for by the appellee, Mohinder Pal Dhaliwal. We are called to review the ruling of our Colleague made while he served as Justice in Chambers.

The facts as culled from the certified records reveal that on October 30, 2019, the appellee, Mohinder Pal Dhaliwal, filed an action of ejectment before the Civil Law Court against the Master Trading Center, praying the court to oust and evict the said Master Trading Center from a building, lying and situated on a little more of a quarter of an acre of land on Randall Street, Monrovia. The appellee alleged in its complaint that he is the legitimate owner of the building by virtue of a leasehold right which grows out of a lease agreement he entered into with the Intestate Estate of Aaron Cooper represented by its administrator, Edwin Cooper; that the Master Trading Center was illegally possessing the premises subject of the lease agreement and that despite being notified about the appellee's leasehold and possessory right under the lease agreement, Master Trading Center defiantly continued its possession and occupancy of the premises.

In response to the appellee's complaint, Master Trading Center filed a three-count answer in which it essentially stated that it did sub-leased the premises from the co-appellant herein, Rejinder Pal Singh Dhaliwal, who is the lessee of the Cooper family, and that its right of possession and occupancy of the premises is based on a lease agreement executed between it and the co-appellant, Rejinder Pal Singh Dhaliwal. Master Trading Center attached to its answer the lease agreement referred to, which commenced from January 1, 2016 up to December 31, 2020.

The co-appellant, Rejinder Pal Singh Dhaliwal, filed a motion to intervene and subsequently filed an intervener's answer to the complaint filed by the appellee. In the motion, the co-appellant contended that he is the lessee of the Testate Estate of Aaron D. Cooper and sub-lessor of Master Trading Center, defendant in the action of ejectment; that Master Trading Center was placed in possession of the premises subject of the ejectment action by him. He therefore prayed the court to allow him to intervene as a party defendant in order to sufficiently and adequately protect his leasehold right to the property, subject of the dispute, as his lease agreement with the Testate Estate of Aaron D. Cooper is valid up to September 2056.

In the intervener's answer, the co-appellant averred that he entered into a lease agreement with the executrix and executors of the testate estate of Aaron D. Cooper which is valid up to 2056; that the lease agreement on which the Appellee Mohinder Pal Dhaliwal relied in filing the ejectment action is a legal nullity because the extended letters of administration issued to Edwin Cooper, purported administrator of the intestate estate of Aaron D. Cooper, was obtained contrary to law, as a testate estate cannot be administered by

letters of administration; that Edwin Cooper's extended letters of administration was obtained through false representation of material facts to the Monthly and Probate Court of Montserrado County and that the said court had revoked the extended letters of administration issued to Edwin Cooper on November 1, 2019. The co-appellant further stated that at the time of the execution of the lease agreement between the intestate estate of Aaron D. Cooper and the appellee, Edwin Cooper had no legal standing to commit the estate to anyone in the form of transferred possessory right. The co-appellant prayed the court to dismiss the appellee's ejectment action because the appellee, Mohinder Pal Dhaliwal, lacked standing to institute the suit, as it is the co-appellant who has a valid lease agreement with the estate of Aaron D. Cooper for the disputed property. The co-appellant attached to its motion to intervene the lease agreement executed between the co-appellant and the testate estate of Aaron D. Cooper represented by its executrix and executors, Doris Cooper, H. Tony Wilson and Baseh F. Cooper for a period of twenty years commencing from October 1, 2016 to September 30, 2036, with an optional period of twenty (20) years commencing from October 1, 2036 to September 30, 2056.

The appellee, Mohinder Pal Dhaliwal, filed a six-count resistance to the co-appellant's motion to intervene. In his resistance, the appellee contended that the co-appellant lacks legal status and capacity to intervene in the ejectment action because no statute of the Republic of Liberia confers on the co-appellant the unconditional right to intervene; that the co-appellant failed to show any interest in respect to which representation of his interest by the existing party defendant is or maybe inadequate; that the same legal counsel that is representing the defendant (Master Trading Center) in the ejectment action is the same counsel the co-appellant retained to move the court to allow him to intervene; consequently, representation of Co-appellant Rejinder Pal Singh Dhaliwal purported or alleged interest by the existing party will be adequate.

The appellee further averred in his resistance to the motion that the co-appellant's claim that the late Aaron D. Cooper died testate is false and misleading as the said Aaron D. Cooper died intestate on March 4, 1990, and after a diligent search by his heirs, no will was found, based upon which the then Judge of the Monthly and Probate Court for Montserrado County, His Honor Harper Bailey, on April 15, 1990, issued letters of administration to Edwin L. Cooper and Ora Sumu Cooper to administer the intestate estate of Aaron D. Cooper. Doris Cooper, H. Tony Wilson and Baseh F. Cooper are not and have never been executors and executrix of Aaron D. Cooper's estate as the co-appellant asserts; besides, he has failed to plead and proffer copies of

the Last Will and Testament of Aaron D. Cooper and the letters testamentary issued to the purported executors and executrix authorizing them to administer the testate estate of Arron D. Cooper. The appellee prayed the court to deny the co-appellant's motion to intervene as it has no foundation in law and was filed purposely to unduly delay and prejudice the adjudication of the ejectment action filed by the appellee.

His Honor Roland F. Dahn, Assigned Judge of the 6th Judicial Circuit, Civil Law Court, Montserrado County, after entertaining arguments on the co-appellant's motion to intervene and the resistance filed thereto, entered a ruling in which he denied and dismissed the motion to intervene, holding that the motion filed by the appellant should have been a motion to join and not to intervene. The co-appellant excepted to the judge's ruling and announced an appeal therefrom, filing a bill of exceptions. While the appeal announced was pending, the co-appellant filed a motion before Judge Dahn to rescind his ruling; however, realizing the limited time the Judge had at his assignment and might not hear the motion, the co-appellant proceeded to file a petition for the writ of certiorari before the Justice in Chambers, His Honor Yussif D. Kaba, contending that the ruling made by Judge Dahn denying his motion to intervene was erroneous and should be reversed.

Justice Kaba cited the parties to the petition for a conference and thereafter issued a mandate to Judge Dahn "to resume jurisdiction and proceed in keeping with law". The co-appellant states that Justice Kaba's decision not to issue the alternative writ was based on his advice that the matter being a property matter, it would be better for all the parties to produce evidence so that at the end of the trial if the case was brought up on appeal to the Supreme Court, it would be able to review the case in its totality. The co-appellant alleges that they then left the conference with the Chambers Justice with the understanding that Judge Dahn would hear the motion to rescind his ruling. The appellee on the other hand contends that the Justice's refusal to issue the alternative writ was based solely on the law and not on any agreement reached at the conference.

The records show that following Justice Kaba's mandate to the court below to resume jurisdiction and proceed in keeping with law, Judge Dahn assigned the motion to rescind for hearing and thereafter granted the motion, thereby rescinding his denial of the co-appellant motion to intervene.

It is from this ruling of Judge Dahn that the appellee filed a petition for the writ of prohibition before His Honor Joseph N. Nagbe who succeeded Justice Kaba in Chambers, praying for the issuance of the preemptory writ of

prohibition to restrain and prohibit the enforcement of Judge Dahn's ruling. In his eight-count amended petition for prohibition, the appellee contended that the trial judge denied the co-appellant's motion to intervene in an action of ejectment filed by the appellee and the co-appellant announced an appeal therefrom and subsequently filed a bill of exception which was approved by the trial Judge and thereby removed the motion to intervene from the trial court's jurisdiction; that while the appeal was pending before the Supreme Court, the co-appellant filed a motion to rescind in the trial court on January 30, 2020, which motion was denied by the Judge. The co-appellant thereafter filed a petition for the writ of certiorari on January 31, 2020, and the petition for certiorari was denied by the Justice in Chambers, His Honor Yussif D. Kaba, following a conference with the parties; that after the denial of the petition for certiorari, the co-appellant's counsel pestered Judge Dahn to assign and hear the motion to rescind filed on January 30, 2020; that the Judge heard and granted the motion to rescind in gross disregard of Justice Kaba's refusal to reverse the ruling denying the co-appellant's motion to intervene. The appellee emphatically argued that Justice Kaba did not instruct the trial judge to rescind his ruling on the motion to intervene as insinuated by the Judge Dahn in his ruling on the motion to rescind.

The Justice Nagba issued the alternative writ of certiorari and instructed the Co-appellants to file their returns to the appellee's petition. In response to the Chambers Justices order, Co-appellant, Rejinder Pal Singh Dhaliwal filed an eleven-count returns, basically contending that the Chambers Justice refuse jurisdiction over the petition since entertaining the petition would amount to reviewing the act of another Associate Justice of concurrent jurisdiction; that because the lower court Judge acted based upon the intervention by another Associate Justice, whether it was verbal or in writing, another Justice of concurrent jurisdiction cannot review that intervention except the Full Bench of the Supreme Court upon the filing of a bill of information. The co-appellant therefore prayed for the denial and dismissal of the appellee's petition for a writ of prohibition.

The Chambers Justice, His Honor Joseph N. Nagbe, entertained arguments on the petition and thereafter delivered a ruling in which he granted the petition, issuing the peremptory writ of prohibition as prayed for by the appellee. Justice Nagbe held that that the trial Judge was in error to have rescinded his ruling on the motion to intervene as there was no trace of the relevant communication or instruction from the Chambers of Justice Kaba authorizing the said Judge to rescind his ruling; that the instruction which emanated from Justice Kaba's Chambers to the office of the Clerk of the Supreme Court clearly

mandated the trial judge to resume jurisdiction and proceed in keeping with law and nowhere in that mandate was the trial judge instructed to rescind his ruling. Justice Nagbe further held that by entertaining the petition for prohibition, he was in no way ascribing unto himself the authority to review the act of his colleague as contended by the co-appellant because Justice Kaba did not in his mandate to the trial court instruct the Judge to rescind his ruling; that further, prior to hearing and granting of the co-appellant's motion to rescind, the trial judge had already approved the co-appellant's bill of exceptions against the denial of the Judge to allow co-appellant's motion to intervene, and this removed the case from the jurisdiction of the trial court; hence, the Judge was in error to have entertained and granted the co-appellant's motion to rescind.

From the facts narrated above, we must determine whether the Chambers' Justice erred in granting the preemptory writ of prohibition.

In his brief filed before this Court, the co-appellant argues that Justice Nagbe's ruling on the petition for prohibition is equated to a review and reversal of an act of another Justice of concurrent jurisdiction as Judge Dahn's rescission of his ruling was based on Justice Kaba's advice that the Judge permits the co-appellant to intervene since the case is a property matter. Justice Nagbe's reversal of the trial Judge's ruling which was based on the intervention of his Colleague Justice of concurrent jurisdiction, the co-appellant asserts, was without the pale of the law. The co-appellant reference the case, *J.D. Wesley v. Charles Tyler, Williams et al*, 20 LLR 477 (1971) wherein this Court held "that no Justice, including the Chief Justice of the Supreme Court, may by himself, negate a ruling of a colleague".

The J.D. Wesley case referred to by the co-appellant is clearly distinguishable from the instant case. In the *J.D. Wesley* case, a petition for the writ of error was filed by Mr. J.D. Wesley before Mr. Justice Clarence Simpson. Upon assignment of the petition for hearing, the counsel for J.D. Wesley failed to appear. The counsel for the defendants-in-error invoked the rules and the Justice ruled against the petitioner, Mr. J.D. Wesley. Thereafter, counsel for J.D. Wesley applied for an order from the then Chief Justice A. Dash Wilson, Sr. to stay the enforcement of the judgment in the court below and said application was granted. Subsequently, the case was heard by the succeeding Chamber Justice, James A. A. Pierre, who set aside the order of Chief Justice Wilson, Sr. staying the execution of the judgment below. the plaintiff-in-error appealed Justice Pierre's ruling to the full bench, and the bench in affirming

the ruling of Chief Justice Pierre, opined that no Justice, including the Chief Justice of the Supreme Court, may by himself, negate a ruling of a colleague.

Unlike the J.D. Wesley case where the Chambers Justice before whom the petition for the writ of error was filed had heard and ruled, in the instant case, the co-appellant filed its petition for certiorari before Justice Yussif D. Kaba who served as Justice in Chambers. The Justice refused to issue the alternative writ after holding a conference with the parties but sent an order to the court below to "resumes jurisdiction and proceed in keeping with law".

This Court notes that when the parties to a petition for remedial writ have been cited to a conference by the Chambers Justice and the Justice finds it not legal or expedient to issue a writ he/she sends down an order to the trial court "to proceed in accordance with law". In such instance, the Chambers Justice have decided to have the trial court pursue the matter on the course of the law with no interference from the Supreme Court. In other cases, where upon citation a conference is held and the parties during said conference see reason to have the trial court pursue the matter along an agreed legal course, especially so as to avoid hindrance to a speedy determination of the case, the Justice in Chambers would decline to issue the alternative writ and send a mandate to the court below to proceed in accordance with law, relying on the good faith understanding of the parties to pursue the case in the court below.

The records certified to this court show that Mr. Justice Yussif D. Kaba, after having a conference with parties to the petition for certiorari filed in his Chambers by the co-appellee issued out the below instruction to the Clerk of the Supreme Court: "By directive of His Honor Yussif D. Kaba, Associate Justice presiding in Chambers, you are hereby mandated to resume jurisdiction and proceed in keeping with law".

The language of the instruction from Justice Kaba is unmistakably clear on its face. The Justice simply refused to issue the alternative writ of certiorari as prayed for by the co-appellant and thereby mandated the trial Judge to proceed with the case in keeping with law. If there was an oral understanding reached at the conference based on the Justice's advice as the co-appellant states, implementing it was to be based on the good faith of the parties, as the language of the mandate sent to the lower court does not communicate such. This phrase however does not inhibit or preclude a lower court judge from proceeding in the case as he sees fit. Judge Dahn decision to call and entertain the motion to rescind under ordinary circumstances could not be said to be in error.

The certified records in this case however show that when the co-appellant motion to intervene was denied, he announced an appeal and filed a bill of exceptions which was approved by the trial Judge; subsequent to the approval of his bill of exceptions he filed a motion to rescind, and while the motion to rescind remained undecided, he proceeded to file a petition for a writ of certiorari before Justice Kaba.

This Court says that Justice Joseph N. Nagbe's act of entertaining the appellee's petition for prohibition did not amount to a review of a ruling made by Justice Kaba as there was no ruling made by Justice Kaba in the petition for certiorari filed before him. We are also in agreement with Justice Nagbe's conclusion that the lower court having lost jurisdiction when the Judge approved the co-appellant's bill of exceptions filed against his ruling denying the motion to intervene, it could not proceed to hear and decide the motion to rescind. Ordinarily, therefore, this Court would dismiss the appeal as a matter of law.

This Court has however opined that disputes relating to property borders on fundamental constitutional rights, and as such, courts must handle property cases in a form and manner that ensures that all parties laying reasonable claims to property in disputes are accorded the right to due process of law. Besides our laws favor the speedy and expeditious disposition of disputes and the Court has held that where rights of citizens are in issue, such as the property rights contested by the parties herein, long and tedious process of litigation tends to defeat the right to speedy dispensation of justice. Also it is an established policy of this Court not to entertain cases in bits and pieces. *RL v. His Honor Kaba et al*, Supreme Court Opinion, October Term, 2014; *National Milling Company of Liberia v. Pupo and Miatta Family Center*, 34 LLR 467, 469 (1987).

Considering that the parties in this case are seeking to establish their rights to possession of the disputed property, the appellee claiming possessory title to the property on account of a lease agreement allegedly executed between him and the intestate estate of Aaron D. Cooper represented by its administrator, Edwin Cooper, and the co-appellant asserting his possessory title to the property which he alleges derives from a lease agreement allegedly entered into between him and the testate estate of Aaron D. Cooper represented by its executrix and executors, Doris Cooper, H. Tony Wilson and Baseh F. Cooper for a period of twenty years commencing from October 1, 2016 to September 30, 2036, with an optional period of twenty (20) years commencing from October 1, 2036 to September 30, 2056, evidently, under

the facts and circumstance as herein presented, the trial of the case in the Civil Law Court without the involvement of all of the parties mentioned above will inevitably lead to a resolution of the issue of possessory title to the disputed property in piecemeal over a long period of time.

More besides, the contending parties alleged to have acquired title from the same grantor and for the same identical parcel of real property. Given that the ultimate source of all the parties possessory title in this case is the Cooper family, it is only proper that they all be allowed to furnish proof of the validity of their respective titles in the court below so as to settle the question of whose title to the disputed property is superior to the other. *Tulay v. Salvation Army (Liberia) Inc.*, 41 LLR 262, 275 (2002); *Watamal, Cooper et al. v. Keita*, Supreme Court Opinion, October Term, 2012.

Our Civil Procedure Law, Section 5.51 provides for the courts to join persons who ought to be parties to an action if complete relief is to be accorded between the persons who are parties to such action, or who might be inequitably affected by a judgement. The co-appellant having claimed that Master Trading Center the defendant below was placed in possession of the premises subject of the ejectment action by him and prays the court to allow him to intervene as a party defendant in order to sufficiently and adequately protect his leasehold right to the disputed property as his lease agreement with the Testate Estate of Aaron D. Cooper is valid up to September 2056, this Court is disposed to have him joined in the action filed so as to protect his property right and for the disposition of the contest to title in its totality.

WHEREFORE AND IN VIEW OF THE FOREGOING, we affirm the ruling of the Justice in Chambers. However, in the interest of the fair and just disposition of the ejectment action, the judge presiding in the court below is instructed to join the Co-appellant Rajinder Pal Singh Dhaliwal as party defendant and to allow him to file his pleadings *nunc pro tunc*. The Clerk is ordered to send a mandate to the Civil Law Court to resume jurisdiction and give effect to the Judgment. Costs are ruled against the Co-appellant. AND IT IS HEREBY SO ORDERED.

WHEN THIS CASE WAS CALLED FOR HEARING COUNSELLOR COOPER W. KRUAH OF THE HENRIES LAW FIRM APPEARED FOR THE APPELLANTS. COUNSELLOR J. EMMANUEL R. BERRY OF THE BERRY LAW FIRM APPEARED FOR THE APPELLEE.